



File No.: EXP202305002

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the complainant) states that on February 5, 2023, she consulted the website of FLEUROP INTERFLORA ESPAÑA, S.A. (hereinafter, the respondent) to obtain a quote for a bouquet of flowers, for which her personal data were requested. However, she believes that this request is excessive for calculating the amount of the quoted service, as it would suffice to provide the postal code of the location to which the bouquet should be sent.

She points out that during the process in which data were to be provided to prepare the quote, despite the request for data, there was no information regarding the processing of such data. She states that she decided not to hire the services of the respondent; nevertheless, without her consent, she received an email at her personal email address informing her that the purchase she had been informed about was still pending, considering this to be an inappropriate processing of her data.

On February 7, 2023, she sent an email to the respondent requesting her right of access, receiving a response on the same date indicating that they did not have any data from the complainant. Therefore, on February 8, 2023, she forwarded a screenshot of the received email, receiving a response on March 8, 2023, stating that it was not a commercial email, but rather an attempt to make a purchase, and that is why she was informed about the status of her shopping cart. However, her request for access to data was not addressed, despite her sending a new email on March 12, 2023, requesting a response to her right of access, without receiving an adequate response.

She provides a copy of the email received on February 5, 2023, and the emails exchanged with the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent states that "(...) the use of cookies on this website is temporary and that users accept the cookie policies when using the site. Therefore, the stored data is not permanent, and as a result, when a user requests access to their data on Interflora, there are no permanent records available. (...)"

THIRD: The result of the transfer procedure indicated in the previous Fact did not satisfy the claims of the complainant. Consequently, on June 19, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any arguments they deemed appropriate within ten working days, without submitting any arguments within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict

them, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

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In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the claimant with the appropriate response.

The result of this forwarding did not satisfy the claims of the claimant. Consequently, on June 19, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the submitted claim was admitted for processing. This admission to processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim to be accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to address any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than within a month.

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unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not attend to such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party. The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data." Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, being deemed that the request has been attended to (although the interested party may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a result of the denial of any of the rights regulated in the data protection regulations. Therefore, in the present case, only the aspects related to the exercise of the right of access will be analyzed and evaluated, excluding the other issues raised.

During the processing of the present procedure, and taking into account what is stated in the previous paragraph, it has been established that the claimant requested access to their personal data from the respondent, without any documentary evidence being provided that would allow for the consideration that such right has been attended to, or denied with justification.

Thus, it cannot be accepted that the response that corresponds to be given can be manifested on the occasion of a mere administrative procedure, such as the formulation of allegations due to the present procedure, initiated precisely for not properly attending to the request in question.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been

raised, leaving it without the response that the responsible parties must necessarily issue, even in the event that there are no data in the files or even in those cases where it does not meet the required criteria, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why it is not appropriate to consider the right in question.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of rights request is attached, it is appropriate to uphold the claim that originated the present procedure.

In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge FLEUROP INTERFLORA ESPAÑA, S.A. with NIF A85934784, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with what is established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to FLEUROP INTERFLORA ESPAÑA, S.A. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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